

		date. As a reminder, this Court hears Law & Motion matters on Thursdays at 2:00 p.m. 7. The proposed order and judgment should state that the Court’s continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6. Final Accounting will be set in accordance with the Court’s Order of Final Approval and Judgment after Plaintiff’s counsel proposes a realistic date. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Aggrieved Employees and all others in accordance with the Settlement, as well as the amount of unclaimed funds, if any, remitted to the State Controller’s Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.
120	Fabian vs. Fruth Custom Plastics, Inc. 2024-01408686	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Aidee Fabian’s Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 6/21/2024, Plaintiff Aidee Fabian, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Fruth Custom Plastics, Inc. (ROA #2.) Defendant answered on 8/14/2024. (ROA #13.) The operative complaint is the first amended complaint, filed on 11/6/2025 pursuant to a stipulated order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #49.) On 11/13/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement and submitted the Class Action and PAGA Settlement Agreement and Release (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$575,000. The GSA includes \$30,000 allocated for PAGA penalties. On 3/5/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. Counsel then submitted supplemental materials, including an Amendment to Class Action and

	PAGA Settlement Agreement and Release (“1st Amendment”) and an amended Class Notice. On 5/28/2026, the Court continued the second hearing on the motion and asked Class Counsel to address various issues. Counsel then submitted supplemental materials, including a Second Amendment to Class Action and PAGA Settlement Agreement and Release (“2nd Amendment”) and a further amended Class Notice. Based on a review of all papers submitted, including the Settlement Agreement and the 1st and 2nd Amendments thereto, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing. The Motion for Final Approval will be heard on 12/3/2026 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys’ fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys’ fees award will not be made until final approval, the Court is unlikely to approve attorneys’ fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists. Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
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